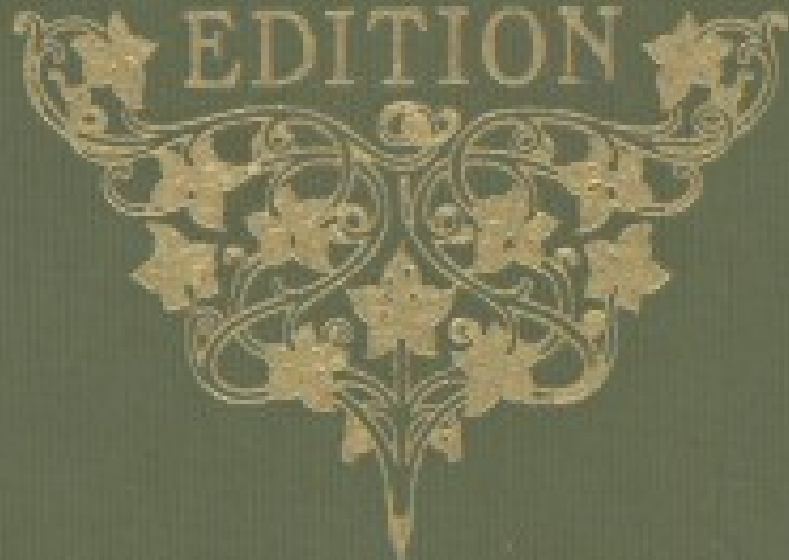
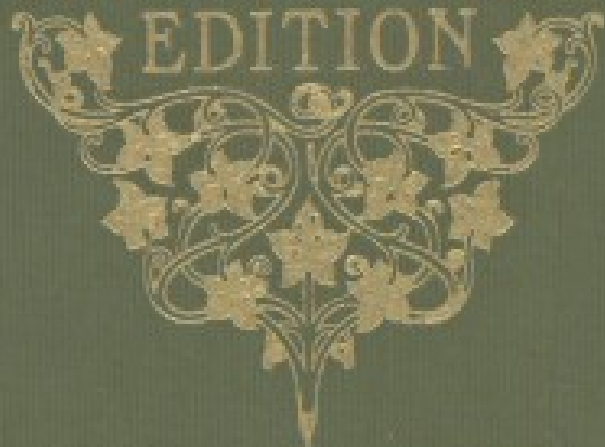


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UNDER THREE HEADS ***

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SUNDAY UNDER THREE HEADS

By CHARLES DICKENS

LONDON: CHAPMAN & HALL, LD.
NEW YORK: CHARLES SCRIBNER'S SONS
1905

DEDICATION

To The Right Reverend
THE BISHOP OF LONDON

MY LORD,

You were among the first, some years ago, to expatiate on the vicious addiction of the lower classes of society to Sunday excursions; and were thus instrumental in calling forth occasional demonstrations of those extreme opinions on the subject, which are very generally received with derision, if not with contempt.

Your elevated station, my Lord, affords you countless opportunities of increasing the comforts and pleasures of the humbler classes of society—not by the expenditure of the smallest portion of your princely income, but by merely sanctioning with the influence of your example, their harmless pastimes, and innocent recreations.

That your Lordship would ever have contemplated Sunday recreations with so much horror, if you had been at all acquainted with the wants and necessities of the people who indulged in them, I cannot imagine possible. That a Prelate of your elevated rank has the faintest conception of the extent of those wants, and the nature of those necessities, I do not believe.

For these reasons, I venture to address this little Pamphlet to your Lordship's consideration. I am quite conscious that the outlines I have drawn, afford but a very imperfect description of the feelings they are

intended to illustrate; but I claim for them one merit—their truth and freedom from exaggeration. I may have fallen short of the mark, but I have never overshot it: and while I have pointed out what appears to me, to be injustice on the part of others, I hope I have carefully abstained from committing it myself.

I am,
My Lord,

Your Lordship's most obedient,

Humble Servant,
TIMOTHY SPARKS.

June, 1836.

I AS IT IS

THERE are few things from which I derive greater pleasure, than walking through some of the principal streets of London on a fine Sunday, in summer, and watching the cheerful faces of the lively groups with which they are thronged. There is something, to my eyes at least, exceedingly pleasing in the general desire evinced by the humbler classes of society, to appear neat and clean on this their only holiday. There are many grave old persons, I know, who shake their heads with an air of profound wisdom, and tell you that poor people dress too well now-a-days; that when they were children, folks knew their stations in life better; that you may depend upon it, no good will come of this sort of thing in the end,—and so forth: but I fancy I can discern in the fine bonnet of the working-man's wife, or the feather-bedizened hat of his child, no inconsiderable evidence of good feeling on the part of the man himself, and an affectionate desire to expend the few shillings he can spare from his week's wages, in improving the appearance and adding to the happiness of those who are nearest and dearest to him. This may be a very heinous and unbecoming degree of vanity, perhaps, and the money might possibly be applied to better uses; it must not be forgotten, however, that it might very easily be devoted to worse: and if two or three faces can be rendered happy and contented, by a trifling improvement of outward appearance, I cannot help thinking that the object is very cheaply purchased, even at the expense of a smart gown, or a gaudy riband. There is a great deal of very unnecessary cant about the over-dressing of the common people. There is not a manufacturer or tradesman in existence, who would not employ a man who takes a reasonable degree of pride in the appearance of himself and those about him, in preference to a sullen, slovenly fellow, who works doggedly on, regardless of his own clothing and that of his wife and children, and seeming to take pleasure or pride in nothing.

The pampered aristocrat, whose life is one continued round of licentious pleasures and sensual gratifications; or the gloomy enthusiast, who detests the cheerful amusements he can never enjoy, and envies the healthy feelings he can never know, and who would put down the one and suppress the other, until he made the minds of his fellow-beings as besotted and distorted as his own;—neither of these men can by possibility form an adequate notion of what Sunday really is to those whose lives are spent in sedentary or laborious occupations, and who are accustomed to look forward to it through their whole existence, as their only day of rest from toil, and innocent enjoyment.

The sun that rises over the quiet streets of London on a bright Sunday morning, shines till his setting, on gay and happy faces. Here and there, so early as six o'clock, a young man and woman in their best attire, may be seen hurrying along on their way to the house of some acquaintance, who is included in their scheme of pleasure for the day; from whence, after stopping to take "a bit of breakfast," they sally forth, accompanied by several old people, and a whole crowd of young ones, bearing large hand-baskets full of provisions, and Belcher handkerchiefs done up in bundles, with the neck of a bottle sticking out at the top, and closely-packed apples bulging out at the sides,—and away they hurry along the streets leading to the steam-packet wharfs, which are already plentifully sprinkled with parties bound for the same destination. Their good humour and delight know no bounds—for it is a delightful morning, all blue over head, and nothing like a cloud in the whole sky; and even the air of the river at London Bridge is something to them, shut up as they have been, all the week, in close streets and heated rooms. There are dozens of steamers to all sorts of places—Gravesend, Greenwich, and Richmond; and such numbers of people, that when you have once sat down on the deck, it is all but a moral impossibility to get up again—to say nothing of walking about, which is entirely out of the question. Away they go, joking and laughing, and eating and drinking, and admiring everything they see, and pleased with everything they hear, to climb Windmill Hill, and catch a glimpse of the rich corn-fields and beautiful orchards of Kent; or to stroll among the fine

old trees of Greenwich Park, and survey the wonders of Shooter's Hill and Lady James's Folly; or to glide past the beautiful meadows of Twickenham and Richmond, and to gaze with a delight which only people like them can know, on every lovely object in the fair prospect around. Boat follows boat, and coach succeeds coach, for the next three hours; but all are filled, and all with the same kind of people—neat and clean, cheerful and contented.

They reach their places of destination, and the taverns are crowded; but there is no drunkenness or brawling, for the class of men who commit the enormity of making Sunday excursions, take their families with them: and this in itself would be a check upon them, even if they were inclined to dissipation, which they really are not. Boisterous their mirth may be, for they have all the excitement of feeling that fresh air and green fields can impart to the dwellers in crowded cities, but it is innocent and harmless. The glass is circulated, and the joke goes round; but the one is free from excess, and the other from offence; and nothing but good humour and hilarity prevail.

In streets like Holborn and Tottenham Court Road, which form the central market of a large neighbourhood, inhabited by a vast number of mechanics and poor people, a few shops are open at an early hour of the morning; and a very poor man, with a thin and sickly woman by his side, may be seen with their little basket in hand, purchasing the scanty quantity of necessaries they can afford, which the time at which the man receives his wages, or his having a good deal of work to do, or the woman's having been out charring till a late hour, prevented their procuring over-night. The coffee-shops too, at which clerks and young men employed in counting-houses can procure their breakfasts, are also open. This class comprises, in a place like London, an enormous number of people, whose limited means prevent their engaging for their lodgings any other apartment than a bedroom, and who have consequently no alternative but to take their breakfasts at a coffee-shop, or go without it altogether. All these places, however, are quickly closed; and by the time the church bells begin to ring, all appearance of traffic has ceased. And then, what are the signs of immorality that meet the

eye? Churches are well filled, and Dissenters' chapels are crowded to suffocation. There is no preaching to empty benches, while the drunken and dissolute populace run riot in the streets.

Here is a fashionable church, where the service commences at a late hour, for the accommodation of such members of the congregation—and they are not a few—as may happen to have lingered at the Opera far into the morning of the Sabbath; an excellent contrivance for poisoning the balance between God and Mammon, and illustrating the ease with which a man's duties to both, may be accommodated and adjusted. How the carriages rattle up, and deposit their richly-dressed burdens beneath the lofty portico! The powdered footmen glide along the aisle, place the richly-bound prayer-books on the pew desks, slam the doors, and hurry away, leaving the fashionable members of the congregation to inspect each other through their glasses, and to dazzle and glitter in the eyes of the few shabby people in the free seats. The organ peals forth, the hired singers commence a short hymn, and the congregation condescendingly rise, stare about them, and converse in whispers. The clergyman enters the reading-desk,—a young man of noble family and elegant demeanour, notorious at Cambridge for his knowledge of horse-flesh and dancers, and celebrated at Eton for his hopeless stupidity. The service commences. Mark the soft voice in which he reads, and the impressive manner in which he applies his white hand, studded with brilliants, to his perfumed hair. Observe the graceful emphasis with which he offers up the prayers for the King, the Royal Family, and all the Nobility; and the nonchalance with which he hurries over the more uncomfortable portions of the service, the seventh commandment for instance, with a studied regard for the taste and feeling of his auditors, only to be equalled by that displayed by the sleek divine who succeeds him, who murmurs, in a voice kept down by rich feeding, most comfortable doctrines for exactly twelve minutes, and then arrives at the anxiously expected 'Now to God,' which is the signal for the dismissal of the congregation. The organ is again heard; those who have been asleep wake up, and those who have kept awake, smile and seem greatly relieved; bows and congratulations are exchanged, the livery servants are all bustle and commotion, bang go the steps, up jump the footmen, and off rattle the carriages: the inmates discoursing on the dresses of the congregation, and

congratulating themselves on having set so excellent an example to the community in general, and Sunday-pleasurers in particular.

Enter a less orthodox place of religious worship, and observe the contrast. A small close chapel with a white-washed wall, and plain deal pews and pulpit, contains a closely-packed congregation, as different in dress, as they are opposed in manner, to that we have just quitted. The hymn is sung—not by paid singers, but by the whole assembly at the loudest pitch of their voices, unaccompanied by any musical instrument, the words being given out, two lines at a time, by the clerk. There is something in the sonorous quavering of the harsh voices, in the lank and hollow faces of the men, and the sour solemnity of the women, which bespeaks this a strong-hold of intolerant zeal and ignorant enthusiasm. The preacher enters the pulpit. He is a coarse, hard-faced man of forbidding aspect, clad in rusty black, and bearing in his hand a small plain Bible from which he selects some passage for his text, while the hymn is concluding. The congregation fall upon their knees, and are hushed into profound stillness as he delivers an extempore prayer, in which he calls upon the Sacred Founder of the Christian faith to bless his ministry, in terms of disgusting and impious familiarity not to be described. He begins his oration in a drawling tone, and his hearers listen with silent attention. He grows warmer as he proceeds with his subject, and his gesticulation becomes proportionately violent. He clenches his fists, beats the book upon the desk before him, and swings his arms wildly about his head. The congregation murmur their acquiescence in his doctrines: and a short groan, occasionally bears testimony to the moving nature of his eloquence. Encouraged by these symptoms of approval, and working himself up to a pitch of enthusiasm amounting almost to frenzy, he denounces sabbath-breakers with the direst vengeance of offended Heaven. He stretches his body half out of the pulpit, thrusts forth his arms with frantic gestures, and blasphemously calls upon The Deity to visit with eternal torments, those who turn aside from the word, as interpreted and preached by—himself. A low moaning is heard, the women rock their bodies to and fro, and wring their hands; the preacher's fervour increases, the perspiration starts upon his brow, his face is flushed, and he clenches his hands convulsively, as he draws a hideous and appalling picture of the horrors preparing for the wicked in a future state. A great excitement is

visible among his hearers, a scream is heard, and some young girl falls senseless on the floor. There is a momentary rustle, but it is only for a moment—all eyes are turned towards the preacher. He pauses, passes his handkerchief across his face, and looks complacently round. His voice resumes its natural tone, as with mock humility he offers up a thanksgiving for having been successful in his efforts, and having been permitted to rescue one sinner from the path of evil. He sinks back into his seat, exhausted with the violence of his ravings; the girl is removed, a hymn is sung, a petition for some measure for securing the better observance of the Sabbath, which has been prepared by the good man, is read; and his worshipping admirers struggle who shall be the first to sign it.

But the morning service has concluded, and the streets are again crowded with people. Long rows of cleanly-dressed charity children, preceded by a portly beadle and a withered schoolmaster, are returning to their welcome dinner; and it is evident, from the number of men with beer-trays who are running from house to house, that no inconsiderable portion of the population are about to take theirs at this early hour. The bakers' shops in the humbler suburbs especially, are filled with men, women, and children, each anxiously waiting for the Sunday dinner. Look at the group of children who surround that working man who has just emerged from the baker's shop at the corner of the street, with the reeking dish, in which a diminutive joint of mutton simmers above a vast heap of half-browned potatoes. How the young rogues clap their hands, and dance round their father, for very joy at the prospect of the feast: and how anxiously the youngest and chubbiest of the lot, lingers on tiptoe by his side, trying to get a peep into the interior of the dish. They turn up the street, and the chubby-faced boy trots on as fast as his little legs will carry him, to herald the approach of the dinner to 'Mother' who is standing with a baby in her arms on the doorstep, and who seems almost as pleased with the whole scene as the children themselves; whereupon 'baby' not precisely understanding the importance of the business in hand, but clearly perceiving that it is something unusually lively, kicks and crows most lustily, to the unspeakable delight of all the children and both the parents: and the dinner is borne into the house amidst a shouting of small voices, and jumping of fat legs, which would fill Sir Andrew Agnew with astonishment; as well it might, seeing

that Baronets, generally speaking, eat pretty comfortable dinners all the week through, and cannot be expected to understand what people feel, who only have a meat dinner on one day out of every seven.

The bakings being all duly consigned to their respective owners, and the beer-man having gone his rounds, the church bells ring for afternoon service, the shops are again closed, and the streets are more than ever thronged with people; some who have not been to church in the morning, going to it now; others who have been to church, going out for a walk; and others—let us admit the full measure of their guilt—going for a walk, who have not been to church at all. I am afraid the smart servant of all work, who has been loitering at the corner of the square for the last ten minutes, is one of the latter class. She is evidently waiting for somebody, and though she may have made up her mind to go to church with him one of these mornings, I don't think they have any such intention on this particular afternoon. Here he is, at last. The white trousers, blue coat, and yellow waistcoat—and more especially that cock of the hat—indicate, as surely as inanimate objects can, that Chalk Farm and not the parish church, is their destination. The girl colours up, and puts out her hand with a very awkward affectation of indifference. He gives it a gallant squeeze, and away they walk, arm in arm, the girl just looking back towards her 'place' with an air of conscious self-importance, and nodding to her fellow-servant who has gone up to the two-pair-of-stairs window, to take a full view of 'Mary's young man,' which being communicated to William, he takes off his hat to the fellow-servant: a proceeding which affords unmitigated satisfaction to all parties, and impels the fellow-servant to inform Miss Emily confidentially, in the course of the evening, 'that the young man as Mary keeps company with, is one of the most genteelest young men as ever she see.'

The two young people who have just crossed the road, and are following this happy couple down the street, are a fair specimen of another class of Sunday—pleasurers. There is a dapper smartness, struggling through very limited means, about the young man, which induces one to set him down at

once as a junior clerk to a tradesman or attorney. The girl no one could possibly mistake. You may tell a young woman in the employment of a large dress-maker, at any time, by a certain neatness of cheap finery and humble following of fashion, which pervade her whole attire; but unfortunately there are other tokens not to be misunderstood—the pale face with its hectic bloom, the slight distortion of form which no artifice of dress can wholly conceal, the unhealthy stoop, and the short cough—the effects of hard work and close application to a sedentary employment, upon a tender frame. They turn towards the fields. The girl's countenance brightens, and an unwonted glow rises in her face. They are going to Hampstead or Highgate, to spend their holiday afternoon in some place where they can see the sky, the fields, and trees, and breathe for an hour or two the pure air, which so seldom plays upon that poor girl's form, or exhilarates her spirits.

I would to God, that the iron-hearted man who would deprive such people as these of their only pleasures, could feel the sinking of heart and soul, the wasting exhaustion of mind and body, the utter prostration of present strength and future hope, attendant upon that incessant toil which lasts from day to day, and from month to month; that toil which is too often protracted until the silence of midnight, and resumed with the first stir of morning. How marvellously would his ardent zeal for other men's souls, diminish after a short probation, and how enlightened and comprehensive would his views of the real object and meaning of the institution of the Sabbath become!

The afternoon is far advanced—the parks and public drives are crowded. Carriages, gigs, phaetons, stanhopes, and vehicles of every description, glide smoothly on. The promenades are filled with loungers on foot, and the road is thronged with loungers on horseback. Persons of every class are crowded together, here, in one dense mass. The plebeian, who takes his pleasure on no day but Sunday, jostles the patrician, who takes his, from year's end to year's end. You look in vain for any outward signs of profligacy or debauchery. You see nothing before you but a vast number of

people, the denizens of a large and crowded city, in the needful and rational enjoyment of air and exercise.

It grows dusk. The roads leading from the different places of suburban resort, are crowded with people on their return home, and the sound of merry voices rings through the gradually darkening fields. The evening is hot and sultry. The rich man throws open the sashes of his spacious dining-room, and quaffs his iced wine in splendid luxury. The poor man, who has no room to take his meals in, but the close apartment to which he and his family have been confined throughout the week, sits in the tea-garden of some famous tavern, and drinks his beer in content and comfort. The fields and roads are gradually deserted, the crowd once more pour into the streets, and disperse to their several homes; and by midnight all is silent and quiet, save where a few stragglers linger beneath the window of some great man's house, to listen to the strains of music from within: or stop to gaze upon the splendid carriages which are waiting to convey the guests from the dinner-party of an Earl.

There is a darker side to this picture, on which, so far from its being any part of my purpose to conceal it, I wish to lay particular stress. In some parts of London, and in many of the manufacturing towns of England, drunkenness and profligacy in their most disgusting forms, exhibit in the open streets on Sunday, a sad and a degrading spectacle. We need go no farther than St. Giles's, or Drury Lane, for sights and scenes of a most repulsive nature. Women with scarcely the articles of apparel which common decency requires, with forms bloated by disease, and faces rendered hideous by habitual drunkenness—men reeling and staggering along—children in rags and filth—whole streets of squalid and miserable appearance, whose inhabitants are lounging in the public road, fighting, screaming, and swearing—these are the common objects which present themselves in, these are the well-known characteristics of, that portion of London to which I have just referred.

And why is it, that all well-disposed persons are shocked, and public decency scandalised, by such exhibitions?

These people are poor—that is notorious. It may be said that they spend in liquor, money with which they might purchase necessities, and there is no denying the fact; but let it be remembered that even if they applied every farthing of their earnings in the best possible way, they would still be very—very poor. Their dwellings are necessarily uncomfortable, and to a certain degree unhealthy. Cleanliness might do much, but they are too crowded together, the streets are too narrow, and the rooms too small, to admit of their ever being rendered desirable habitations. They work very hard all the week. We know that the effect of prolonged and arduous labour, is to produce, when a period of rest does arrive, a sensation of lassitude which it requires the application of some stimulus to overcome. What stimulus have they? Sunday comes, and with it a cessation of labour. How are they to employ the day, or what inducement have they to employ it, in recruiting their stock of health? They see little parties, on pleasure excursions, passing through the streets; but they cannot imitate their example, for they have not the means. They may walk, to be sure, but it is exactly the inducement to walk that they require. If every one of these men knew, that by taking the trouble to walk two or three miles he would be enabled to share in a good game of cricket, or some athletic sport, I very much question whether any of them would remain at home.

But you hold out no inducement, you offer no relief from listlessness, you provide nothing to amuse his mind, you afford him no means of exercising his body. Unwashed and unshaven, he saunters moodily about, weary and dejected. In lieu of the wholesome stimulus he might derive from nature, you drive him to the pernicious excitement to be gained from art. He flies to the gin-shop as his only resource; and when, reduced to a worse level than the lowest brute in the scale of creation, he lies wallowing in the kennel, your saintly lawgivers lift up their hands to heaven, and exclaim for a law which shall convert the day intended for rest and cheerfulness, into one of universal gloom, bigotry, and persecution.

II

AS SABBATH BILLS WOULD MAKE IT

THE provisions of the bill introduced into the House of Commons by Sir Andrew Agnew, and thrown out by that House on the motion for the second reading, on the 18th of May in the present year, by a majority of 32, may very fairly be taken as a test of the length to which the fanatics, of which the honourable Baronet is the distinguished leader, are prepared to go. No test can be fairer; because while on the one hand this measure may be supposed to exhibit all that improvement which mature reflection and long deliberation may have suggested, so on the other it may very reasonably be inferred, that if it be quite as severe in its provisions, and to the full as partial in its operation, as those which have preceded it and experienced a similar fate, the disease under which the honourable Baronet and his friends labour, is perfectly hopeless, and beyond the reach of cure.

The proposed enactments of the bill are briefly these:—All work is prohibited on the Lord's day, under heavy penalties, increasing with every repetition of the offence. There are penalties for keeping shops open—penalties for drunkenness—penalties for keeping open houses of entertainment—penalties for being present at any public meeting or assembly—penalties for letting carriages, and penalties for hiring them—penalties for travelling in steam-boats, and penalties for taking passengers—penalties on vessels commencing their voyage on Sunday—penalties on the owners of cattle who suffer them to be driven on the Lord's day—penalties on constables who refuse to act, and penalties for resisting them when they do. In addition to these trifles, the constables are invested with arbitrary, vexatious, and most extensive powers; and all this in a bill which sets out with a hypocritical and canting declaration that 'nothing is more acceptable to God than the *true and sincere* worship of Him according to

His holy will, and that it is the bounden duty of Parliament to promote the observance of the Lord's day, by protecting every class of society against being required to sacrifice their comfort, health, religious privileges, and conscience, for the convenience, enjoyment, or supposed advantage of any other class on the Lord's day'! The idea of making a man truly moral through the ministry of constables, and sincerely religious under the influence of penalties, is worthy of the mind which could form such a mass of monstrous absurdity as this bill is composed of.

The House of Commons threw the measure out certainly, and by so doing retrieved the disgrace—so far as it could be retrieved—of placing among the printed papers of Parliament, such an egregious specimen of legislative folly; but there was a degree of delicacy and forbearance about the debate that took place, which I cannot help thinking as unnecessary and uncalled for, as it is unusual in Parliamentary discussions. If it had been the first time of Sir Andrew Agnew's attempting to palm such a measure upon the country, we might well understand, and duly appreciate, the delicate and compassionate feeling due to the supposed weakness and imbecility of the man, which prevented his proposition being exposed in its true colours, and induced this Hon. Member to bear testimony to his excellent motives, and that Noble Lord to regret that he could not—although he had tried to do so—adopt any portion of the bill. But when these attempts have been repeated, again and again; when Sir Andrew Agnew has renewed them session after session, and when it has become palpably evident to the whole House that

His impudence of proof in every trial,
Kens no polite, and heeds no plain denial—

it really becomes high time to speak of him and his legislation, as they appear to deserve, without that gloss of politeness, which is all very well in an ordinary case, but rather out of place when the liberties and comforts of a whole people are at stake.

In the first place, it is by no means the worst characteristic of this bill, that it is a bill of blunders: it is, from beginning to end, a piece of deliberate cruelty, and crafty injustice. If the rich composed the whole population of this country, not a single comfort of one single man would be affected by it. It is directed exclusively, and without the exception of a solitary instance, against the amusements and recreations of the poor. This was the bait held out by the Hon. Baronet to a body of men, who cannot be supposed to have any very strong sympathies in common with the poor, because they cannot understand their sufferings or their struggles. This is the bait, which will in time prevail, unless public attention is awakened, and public feeling exerted, to prevent it.

Take the very first clause, the provision that no man shall be allowed to work on Sunday—‘That no person, upon the Lord’s day, shall do, or hire, or employ any person to do any manner of labour, or any work of his or her ordinary calling.’ What class of persons does this affect? The rich man? No. Menial servants, both male and female, are specially exempted from the operation of the bill. ‘Menial servants’ are among the poor people. The bill has no regard for them. The Baronet’s dinner must be cooked on Sunday, the Bishop’s horses must be groomed, and the Peer’s carriage must be driven. So the menial servants are put utterly beyond the pale of grace;—unless indeed, they are to go to heaven through the sanctity of their masters, and possibly they might think even that, rather an uncertain passport.

There is a penalty for keeping open, houses of entertainment. Now, suppose the bill had passed, and that half-a-dozen adventurous licensed victuallers, relying upon the excitement of public feeling on the subject, and the consequent difficulty of conviction (this is by no means an improbable supposition), had determined to keep their houses and gardens open, through the whole Sunday afternoon, in defiance of the law. Every act of hiring or working, every act of buying or selling, or delivering, or causing anything to be bought or sold, is specifically made a separate offence—mark the effect. A party, a man and his wife and children, enter a tea-

garden, and the informer stations himself in the next box, from whence he can see and hear everything that passes. 'Waiter!' says the father. 'Yes, Sir.' 'Pint of the best ale!' 'Yes, Sir.' Away runs the waiter to the bar, and gets the ale from the landlord. Out comes the informer's note-book—penalty on the father for hiring, on the waiter for delivering, and on the landlord for selling, on the Lord's day. But it does not stop here. The waiter delivers the ale, and darts off, little suspecting the penalties in store for him. 'Hollo,' cries the father, 'waiter!' 'Yes, Sir.' 'Just get this little boy a biscuit, will you?' 'Yes, Sir.' Off runs the waiter again, and down goes another case of hiring, another case of delivering, and another case of selling; and so it would go on *ad infinitum*, the sum and substance of the matter being, that every time a man or woman cried 'Waiter!' on Sunday, he or she would be fined not less than forty shillings, nor more than a hundred; and every time a waiter replied, 'Yes, Sir,' he and his master would be fined in the same amount: with the addition of a new sort of window duty on the landlord, to wit, a tax of twenty shillings an hour for every hour beyond the first one, during which he should have his shutters down on the Sabbath.

With one exception, there are perhaps no clauses in the whole bill, so strongly illustrative of its partial operation, and the intention of its framer, as those which relate to travelling on Sunday. Penalties of ten, twenty, and thirty pounds, are mercilessly imposed upon coach proprietors who shall run their coaches on the Sabbath; one, two, and ten pounds upon those who hire, or let to hire, horses and carriages upon the Lord's day, but not one syllable about those who have no necessity to hire, because they have carriages and horses of their own; not one word of a penalty on liveried coachmen and footmen. The whole of the saintly venom is directed against the hired cabriolet, the humble fly, or the rumbling hackney-coach, which enables a man of the poorer class to escape for a few hours from the smoke and dirt, in the midst of which he has been confined throughout the week: while the escutcheoned carriage and the dashing cab, may whirl their wealthy owners to Sunday feasts and private oratorios, setting constables, informers, and penalties, at defiance. Again, in the description of the places of public resort which it is rendered criminal to attend on Sunday, there are no words comprising a very fashionable promenade. Public discussions, public debates, public lectures and speeches, are cautiously guarded against;

for it is by their means that the people become enlightened enough to deride the last efforts of bigotry and superstition. There is a stringent provision for punishing the poor man who spends an hour in a news-room, but there is nothing to prevent the rich one from lounging away the day in the Zoological Gardens.

There is, in four words, a mock proviso, which affects to forbid travelling 'with any animal' on the Lord's day. This, however, is revoked, as relates to the rich man, by a subsequent provision. We have then a penalty of not less than fifty, nor more than one hundred pounds, upon any person participating in the control, or having the command of any vessel which shall commence her voyage on the Lord's day, should the wind prove favourable. The next time this bill is brought forward (which will no doubt be at an early period of the next session of Parliament) perhaps it will be better to amend this clause by declaring, that from and after the passing of the act, it shall be deemed unlawful for the wind to blow at all upon the Sabbath. It would remove a great deal of temptation from the owners and captains of vessels.

The reader is now in possession of the principal enacting clauses of Sir Andrew Agnew's bill, with the exception of one, for preventing the killing or taking of '*fish, or other wild animals,*' and the ordinary provisions which are inserted for form's sake in all acts of Parliament. I now beg his attention to the clauses of exemption.

They are two in number. The first exempts menial servants from any rest, and all poor men from any recreation: outlaws a milkman after nine o'clock in the morning, and makes eating-houses lawful for only two hours in the afternoon; permits a medical man to use his carriage on Sunday, and declares that a clergyman may either use his own, or hire one.

The second is artful, cunning, and designing; shielding the rich man from the possibility of being entrapped, and affecting at the same time, to have a

tender and scrupulous regard, for the interests of the whole community. It declares, 'that nothing in this act contained, shall extend to works of piety, charity, or necessity.'

What is meant by the word 'necessity' in this clause? Simply this—that the rich man shall be at liberty to make use of all the splendid luxuries he has collected around him, on any day in the week, because habit and custom have rendered them 'necessary' to his easy existence; but that the poor man who saves his money to provide some little pleasure for himself and family at lengthened intervals, shall not be permitted to enjoy it. It is not 'necessary' to him:—Heaven knows, he very often goes long enough without it. This is the plain English of the clause. The carriage and pair of horses, the coachman, the footman, the helper, and the groom, are 'necessary' on Sundays, as on other days, to the bishop and the nobleman; but the hackney-coach, the hired gig, or the taxed cart, cannot possibly be 'necessary' to the working-man on Sunday, for he has it not at other times. The sumptuous dinner and the rich wines, are 'necessaries' to a great man in his own mansion: but the pint of beer and the plate of meat, degrade the national character in an eating-house.

Such is the bill for promoting the true and sincere worship of God according to his Holy Will, and for protecting every class of society against being required to sacrifice their health and comfort on the Sabbath. Instances in which its operation would be as unjust as it would be absurd, might be multiplied to an endless amount; but it is sufficient to place its leading provisions before the reader. In doing so, I have purposely abstained from drawing upon the imagination for possible cases; the provisions to which I have referred, stand in so many words upon the bill as printed by order of the House of Commons; and they can neither be disowned, nor explained away.

Let us suppose such a bill as this, to have actually passed both branches of the legislature; to have received the royal assent; and to have come into

operation. Imagine its effect in a great city like London.

Sunday comes, and brings with it a day of general gloom and austerity. The man who has been toiling hard all the week, has been looking towards the Sabbath, not as to a day of rest from labour, and healthy recreation, but as one of grievous tyranny and grinding oppression. The day which his Maker intended as a blessing, man has converted into a curse. Instead of being hailed by him as his period of relaxation, he finds it remarkable only as depriving him of every comfort and enjoyment. He has many children about him, all sent into the world at an early age, to struggle for a livelihood; one is kept in a warehouse all day, with an interval of rest too short to enable him to reach home, another walks four or five miles to his employment at the docks, a third earns a few shillings weekly, as an errand boy, or office messenger; and the employment of the man himself, detains him at some distance from his home from morning till night. Sunday is the only day on which they could all meet together, and enjoy a homely meal in social comfort; and now they sit down to a cold and cheerless dinner: the pious guardians of the man's salvation having, in their regard for the welfare of his precious soul, shut up the bakers' shops. The fire blazes high in the kitchen chimney of these well-fed hypocrites, and the rich steams of the savoury dinner scent the air. What care they to be told that this class of men have neither a place to cook in—nor means to bear the expense, if they had?

Look into your churches—diminished congregations, and scanty attendance. People have grown sullen and obstinate, and are becoming disgusted with the faith which condemns them to such a day as this, once in every seven. And as you cannot make people religious by Act of Parliament, or force them to church by constables, they display their feeling by staying away.

Turn into the streets, and mark the rigid gloom that reigns over everything around. The roads are empty, the fields are deserted, the houses of

entertainment are closed. Groups of filthy and discontented-looking men, are idling about at the street corners, or sleeping in the sun; but there are no decently-dressed people of the poorer class, passing to and fro. Where should they walk to? It would take them an hour, at least, to get into the fields, and when they reached them, they could procure neither bite nor sup, without the informer and the penalty. Now and then, a carriage rolls smoothly on, or a well-mounted horseman, followed by a liveried attendant, canters by; but with these exceptions, all is as melancholy and quiet as if a pestilence had fallen on the city.

Bend your steps through the narrow and thickly-inhabited streets, and observe the sallow faces of the men and women who are lounging at the doors, or lolling from the windows. Regard well the closeness of these crowded rooms, and the noisome exhalations that rise from the drains and kennels; and then laud the triumph of religion and morality, which condemns people to drag their lives out in such stews as these, and makes it criminal for them to eat or drink in the fresh air, or under the clear sky. Here and there, from some half-opened window, the loud shout of drunken revelry strikes upon the ear, and the noise of oaths and quarrelling—the effect of the close and heated atmosphere—is heard on all sides. See how the men all rush to join the crowd that are making their way down the street, and how loud the execrations of the mob become as they draw nearer. They have assembled round a little knot of constables, who have seized the stock-in-trade, heinously exposed on Sunday, of some miserable walking-stick seller, who follows clamouring for his property. The dispute grows warmer and fiercer, until at last some of the more furious among the crowd, rush forward to restore the goods to their owner. A general conflict takes place; the sticks of the constables are exercised in all directions; fresh assistance is procured; and half a dozen of the assailants are conveyed to the station-house, struggling, bleeding, and cursing. The case is taken to the police-office on the following morning; and after a frightful amount of perjury on both sides, the men are sent to prison for resisting the officers, their families to the workhouse to keep them from starving; and there they both remain for a month afterwards, glorious trophies of the sanctified enforcement of the Christian Sabbath. Add to such scenes as these, the profligacy, idleness, drunkenness, and vice, that will be committed to an

extent which no man can foresee, on Monday, as an atonement for the restraint of the preceding day; and you have a very faint and imperfect picture of the religious effects of this Sunday legislation, supposing it could ever be forced upon the people.

But let those who advocate the cause of fanaticism, reflect well upon the probable issue of their endeavours. They may by perseverance, succeed with Parliament. Let them ponder on the probability of succeeding with the people. You may deny the concession of a political question for a time, and a nation will bear it patiently. Strike home to the comforts of every man's fireside—tamper with every man's freedom and liberty—and one month, one week, may rouse a feeling abroad, which a king would gladly yield his crown to quell, and a peer would resign his coronet to allay.

It is the custom to affect a deference for the motives of those who advocate these measures, and a respect for the feelings by which they are actuated. They do not deserve it. If they legislate in ignorance, they are criminal and dishonest; if they do so with their eyes open, they commit wilful injustice; in either case, they bring religion into contempt. But they do NOT legislate in ignorance. Public prints, and public men, have pointed out to them again and again, the consequences of their proceedings. If they persist in thrusting themselves forward, let those consequences rest upon their own heads, and let them be content to stand upon their own merits.

It may be asked, what motives can actuate a man who has so little regard for the comfort of his fellow-beings, so little respect for their wants and necessities, and so distorted a notion of the beneficence of his Creator. I reply, an envious, heartless, ill-conditioned dislike to seeing those whom fortune has placed below him, cheerful and happy—an intolerant confidence in his own high worthiness before God, and a lofty impression of the demerits of others—pride, selfish pride, as inconsistent with the spirit of Christianity itself, as opposed to the example of its Founder upon earth.

To these may be added another class of men—the stern and gloomy enthusiasts, who would make earth a hell, and religion a torment: men who, having wasted the earlier part of their lives in dissipation and depravity, find themselves when scarcely past its meridian, steeped to the neck in vice, and shunned like a loathsome disease. Abandoned by the world, having nothing to fall back upon, nothing to remember but time mis-spent, and energies misdirected, they turn their eyes and not their thoughts to Heaven, and delude themselves into the impious belief, that in denouncing the lightness of heart of which they cannot partake, and the rational pleasures from which they never derived enjoyment, they are more than remedying the sins of their old career, and—like the founders of monasteries and builders of churches, in ruder days—establishing a good set claim upon their Maker.

III

AS IT MIGHT BE MADE

THE supporters of Sabbath Bills, and more especially the extreme class of Dissenters, lay great stress upon the declarations occasionally made by criminals from the condemned cell or the scaffold, that to Sabbath-breaking they attribute their first deviation from the path of rectitude; and they point to these statements, as an incontestable proof of the evil consequences which await a departure from that strict and rigid observance of the Sabbath, which they uphold. I cannot help thinking that in this, as in almost every other respect connected with the subject, there is a considerable degree of cant, and a very great deal of wilful blindness. If a man be viciously disposed—and with very few exceptions, not a man dies by the executioner's hands, who has not been in one way or other a most abandoned and profligate character for many years—if a man be viciously disposed, there is no doubt that he will turn his Sunday to bad account, that he will take advantage of it, to dissipate with other bad characters as vile as himself; and that in this way, he may trace his first yielding to temptation, possibly his first commission of crime, to an infringement of the Sabbath. But this would be an argument against any holiday at all. If his holiday had been Wednesday instead of Sunday, and he had devoted it to the same improper uses, it would have been productive of the same results. It is too much to judge of the character of a whole people, by the confessions of the very worst members of society. It is not fair, to cry down things which are harmless in themselves, because evil-disposed men may turn them to bad account. Who ever thought of deprecating the teaching poor people to write, because some porter in a warehouse had committed forgery? Or into what man's head did it ever enter, to prevent the crowding of churches, because it afforded a temptation for the picking of pockets?

When the Book of Sports, for allowing the peasantry of England to divert themselves with certain games in the open air, on Sundays, after evening service, was published by Charles the First, it is needless to say the English people were comparatively rude and uncivilised. And yet it is extraordinary to how few excesses it gave rise, even in that day, when men's minds were not enlightened, or their passions moderated, by the influence of education and refinement. That some excesses were committed through its means, in the remoter parts of the country, and that it was discontinued in those places, in consequence, cannot be denied: but generally speaking, there is no proof whatever on record, of its having had any tendency to increase crime, or to lower the character of the people.

The Puritans of that time, were as much opposed to harmless recreations and healthful amusements as those of the present day, and it is amusing to observe that each in their generation, advance precisely the same description of arguments. In the British Museum, there is a curious pamphlet got up by the Agnews of Charles's time, entitled 'A Divine Tragedie lately acted, or a Collection of sundry memorable examples of God's Judgements upon Sabbath Breakers, and other like Libertines in their unlawful Sports, happening within the realme of England, in the compass only of two yeares last past, since the Booke (of Sports) was published, worthy to be knowne and considered of all men, especially such who are guilty of the sinne, or archpatrons thereof.' This amusing document, contains some fifty or sixty veritable accounts of balls of fire that fell into churchyards and upset the sporters, and sporters that quarrelled, and upset one another, and so forth: and among them is one anecdote containing an example of a rather different kind, which I cannot resist the temptation of quoting, as strongly illustrative of the fact, that this blinking of the question has not even the recommendation of novelty.

'A woman about Northampton, the same day that she heard the booke for sports read, went immediately, and having 3. pence in her purse, hired a fellow to goe to the next towne to fetch a Minstrell, who coming, she with others fell a dauncing, which continued within night; at which time shee

was got with child, which at the birth shee murthering, was detected and apprehended, and being converted before the justice, shee confessed it, and withal told the occasion of it, saying it was her falling to sport on the Sabbath, upon the reading of the Booke, so as for this treble sinfull act, her presumptuous profaning of the Sabbath, wh. brought her adultery and that murther. Shee was according to the Law both of God and man, put to death. Much sinne and misery followeth upon Sabbath-breaking.’

It is needless to say, that if the young lady near Northampton had ‘fallen to sport’ of such a dangerous description, on any other day but Sunday, the first result would probably have been the same: it never having been distinctly shown that Sunday is more favourable to the propagation of the human race than any other day in the week. The second result—the murder of the child—does not speak very highly for the amiability of her natural disposition; and the whole story, supposing it to have had any foundation at all, is about as much chargeable upon the Book of Sports, as upon the Book of Kings. Such ‘sports’ have taken place in Dissenting Chapels before now; but religion has never been blamed in consequence; nor has it been proposed to shut up the chapels on that account.

The question, then, very fairly arises, whether we have any reason to suppose that allowing games in the open air on Sundays, or even providing the means of amusement for the humbler classes of society on that day, would be hurtful and injurious to the character and morals of the people.

I was travelling in the west of England a summer or two back, and was induced by the beauty of the scenery, and the seclusion of the spot, to remain for the night in a small village, distant about seventy miles from London. The next morning was Sunday; and I walked out, towards the church. Groups of people—the whole population of the little hamlet apparently—were hastening in the same direction. Cheerful and good-humoured congratulations were heard on all sides, as neighbours overtook each other, and walked on in company. Occasionally I passed an aged

couple, whose married daughter and her husband were loitering by the side of the old people, accommodating their rate of walking to their feeble pace, while a little knot of children hurried on before; stout young labourers in clean round frocks; and buxom girls with healthy, laughing faces, were plentifully sprinkled about in couples, and the whole scene was one of quiet and tranquil contentment, irresistibly captivating. The morning was bright and pleasant, the hedges were green and blooming, and a thousand delicious scents were wafted on the air, from the wild flowers which blossomed on either side of the footpath. The little church was one of those venerable simple buildings which abound in the English counties; half overgrown with moss and ivy, and standing in the centre of a little plot of ground, which, but for the green mounds with which it was studded, might have passed for a lovely meadow. I fancied that the old clanking bell which was now summoning the congregation together, would seem less terrible when it rung out the knell of a departed soul, than I had ever deemed possible before—that the sound would tell only of a welcome to calmness and rest, amidst the most peaceful and tranquil scene in nature.

I followed into the church—a low-roofed building with small arched windows, through which the sun's rays streamed upon a plain tablet on the opposite wall, which had once recorded names, now as undistinguishable on its worn surface, as were the bones beneath, from the dust into which they had resolved. The impressive service of the Church of England was spoken—not merely *read*—by a grey-headed minister, and the responses delivered by his auditors, with an air of sincere devotion as far removed from affectation or display, as from coldness or indifference. The psalms were accompanied by a few instrumental performers, who were stationed in a small gallery extending across the church at the lower end, over the door: and the voices were led by the clerk, who, it was evident, derived no slight pride and gratification from this portion of the service. The discourse was plain, unpretending, and well adapted to the comprehension of the hearers. At the conclusion of the service, the villagers waited in the churchyard, to salute the clergyman as he passed; and two or three, I observed, stepped aside, as if communicating some little difficulty, and asking his advice. This, to guess from the homely bows, and other rustic expressions of gratitude, the old gentleman readily conceded. He seemed intimately

acquainted with the circumstances of all his parishioners; for I heard him inquire after one man's youngest child, another man's wife, and so forth; and that he was fond of his joke, I discovered from overhearing him ask a stout, fresh-coloured young fellow, with a very pretty bashful-looking girl on his arm, 'when those banns were to be put up?'—an inquiry which made the young fellow more fresh-coloured, and the girl more bashful, and which, strange to say, caused a great many other girls who were standing round, to colour up also, and look anywhere but in the faces of their male companions.

As I approached this spot in the evening about half an hour before sunset, I was surprised to hear the hum of voices, and occasionally a shout of merriment from the meadow beyond the churchyard; which I found, when I reached the stile, to be occasioned by a very animated game of cricket, in which the boys and young men of the place were engaged, while the females and old people were scattered about: some seated on the grass watching the progress of the game, and others sauntering about in groups of two or three, gathering little nosegays of wild roses and hedge flowers. I could not but take notice of one old man in particular, with a bright-eyed grand-daughter by his side, who was giving a sunburnt young fellow some instructions in the game, which he received with an air of profound deference, but with an occasional glance at the girl, which induced me to think that his attention was rather distracted from the old gentleman's narration of the fruits of his experience. When it was his turn at the wicket, too, there was a glance towards the pair every now and then, which the old grandfather very complacently considered as an appeal to his judgment of a particular hit, but which a certain blush in the girl's face, and a downcast look of the bright eye, led me to believe was intended for somebody else than the old man,—and understood by somebody else, too, or I am much mistaken.

I was in the very height of the pleasure which the contemplation of this scene afforded me, when I saw the old clergyman making his way towards us. I trembled for an angry interruption to the sport, and was almost on the

point of crying out, to warn the cricketers of his approach; he was so close upon me, however, that I could do nothing but remain still, and anticipate the reproof that was preparing. What was my agreeable surprise to see the old gentleman standing at the stile, with his hands in his pockets, surveying the whole scene with evident satisfaction! And how dull I must have been, not to have known till my friend the grandfather (who, by-the-bye, said he had been a wonderful cricketer in his time) told me, that it was the clergyman himself who had established the whole thing: that it was his field they played in; and that it was he who had purchased stumps, bats, ball, and all!

It is such scenes as this, I would see near London, on a Sunday evening. It is such men as this, who would do more in one year to make people properly religious, cheerful, and contented, than all the legislation of a century could ever accomplish.

It will be said—it has been very often—that it would be matter of perfect impossibility to make amusements and exercises succeed in large towns, which may be very well adapted to a country population. Here, again, we are called upon to yield to bare assertions on matters of belief and opinion, as if they were established and undoubted facts. That there is a wide difference between the two cases, no one will be prepared to dispute; that the difference is such as to prevent the application of the same principle to both, no reasonable man, I think, will be disposed to maintain. The great majority of the people who make holiday on Sunday now, are industrious, orderly, and well-behaved persons. It is not unreasonable to suppose that they would be no more inclined to an abuse of pleasures provided for them, than they are to an abuse of the pleasures they provide for themselves; and if any people, for want of something better to do, resort to criminal practices on the Sabbath as at present observed, no better remedy for the evil can be imagined, than giving them the opportunity of doing something which will amuse them, and hurt nobody else.

The propriety of opening the British Museum to respectable people on Sunday, has lately been the subject of some discussion. I think it would puzzle the most austere of the Sunday legislators to assign any valid reason for opposing so sensible a proposition. The Museum contains rich specimens from all the vast museums and repositories of Nature, and rare and curious fragments of the mighty works of art, in bygone ages: all calculated to awaken contemplation and inquiry, and to tend to the enlightenment and improvement of the people. But attendants would be necessary, and a few men would be employed upon the Sabbath. They certainly would; but how many? Why, if the British Museum, and the National Gallery, and the Gallery of Practical Science, and every other exhibition in London, from which knowledge is to be derived and information gained, were to be thrown open on a Sunday afternoon, not fifty people would be required to preside over the whole: and it would take treble the number to enforce a Sabbath bill in any three populous parishes.

I should like to see some large field, or open piece of ground, in every outskirt of London, exhibiting each Sunday evening on a larger scale, the scene of the little country meadow. I should like to see the time arrive, when a man's attendance to his religious duties might be left to that religious feeling which most men possess in a greater or less degree, but which was never forced into the breast of any man by menace or restraint. I should like to see the time when Sunday might be looked forward to, as a recognised day of relaxation and enjoyment, and when every man might feel, what few men do now, that religion is not incompatible with rational pleasure and needful recreation.

How different a picture would the streets and public places then present! The museums, and repositories of scientific and useful inventions, would be crowded with ingenious mechanics and industrious artisans, all anxious for information, and all unable to procure it at any other time. The spacious saloons would be swarming with practical men: humble in appearance, but destined, perhaps, to become the greatest inventors and philosophers of their age. The labourers who now lounge away the day in idleness and

intoxication, would be seen hurrying along, with cheerful faces and clean attire, not to the close and smoky atmosphere of the public-house but to the fresh and airy fields. Fancy the pleasant scene. Throngs of people, pouring out from the lanes and alleys of the metropolis, to various places of common resort at some short distance from the town, to join in the refreshing sports and exercises of the day—the children gambolling in crowds upon the grass, the mothers looking on, and enjoying themselves the little game they seem only to direct; other parties strolling along some pleasant walks, or reposing in the shade of the stately trees; others again intent upon their different amusements. Nothing should be heard on all sides, but the sharp stroke of the bat as it sent the ball skimming along the ground, the clear ring of the quoit, as it struck upon the iron peg: the noisy murmur of many voices, and the loud shout of mirth and delight, which would awaken the echoes far and wide, till the fields rung with it. The day would pass away, in a series of enjoyments which would awaken no painful reflections when night arrived; for they would be calculated to bring with them, only health and contentment. The young would lose that dread of religion, which the sour austerity of its professors too often inculcates in youthful bosoms; and the old would find less difficulty in persuading them to respect its observances. The drunken and dissipated, deprived of any excuse for their misconduct, would no longer excite pity but disgust. Above all, the more ignorant and humble class of men, who now partake of many of the bitters of life, and taste but few of its sweets, would naturally feel attachment and respect for that code of morality, which, regarding the many hardships of their station, strove to alleviate its rigours, and endeavoured to soften its asperity.

This is what Sunday might be made, and what it might be made without impiety or profanation. The wise and beneficent Creator who places men upon earth, requires that they shall perform the duties of that station of life to which they are called, and He can never intend that the more a man strives to discharge those duties, the more he shall be debarred from happiness and enjoyment. Let those who have six days in the week for all the world's pleasures, appropriate the seventh to fasting and gloom, either for their own sins or those of other people, if they like to bewail them; but let those who employ their six days in a worthier manner, devote their

seventh to a different purpose. Let divines set the example of true morality: preach it to their flocks in the morning, and dismiss them to enjoy true rest in the afternoon; and let them select for their text, and let Sunday legislators take for their motto, the words which fell from the lips of that Master, whose precepts they misconstrue, and whose lessons they pervert—‘The Sabbath was made for man, and not man to serve the Sabbath.’

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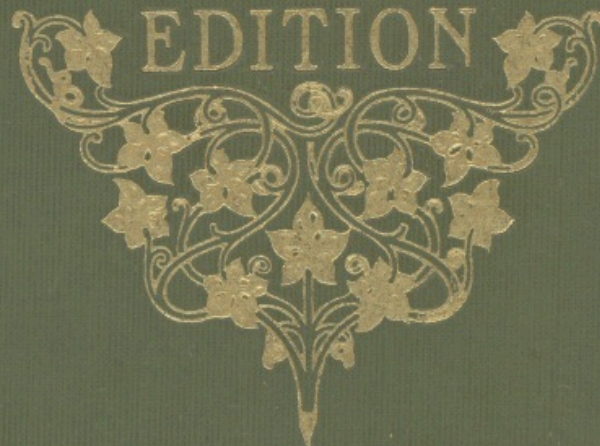
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